

26CV00957 Maria Rodriguez vs Meridian Group Real Estate Management Inc et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-28

Motion: CMC; Demurrer; Motion: Strike

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26cv00957-0>

Source SHA-256: 504da86c8346b7d65136552e16030c717ad2b82bd9580998525bbe29aac379b3

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Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/28/2026 - 10:00

Nature of Proceedings

CMC; Demurrer; Motion: Strike

Tentative Ruling

Maria Rodriguez v. Meridian Group Real Estate Management, Inc., et al.

Case No. 26CV00957

Hearing Date: September 28, 2026

HEARING: (1) Defendants Meridian Group Real Estate Management, Inc., and Hoppy Toad Land Company, LLC's, Demurrer to Plaintiff's Complaint

(2) Defendants Meridian Group Real Estate Management, Inc., and Hoppy Toad Land Company, LLC's, Motion to Strike Portions of Plaintiff's Complaint

ATTORNEYS: For Plaintiff Maria Rodriguez: H. Frederick Seigenfeld, Seige Law PC

For Defendants Meridian Group Real Estate Management, Inc., Hoppy Toad Land Company, LLC, and Robert Kooyman: David B. Wasson, Wasson & Associates, Inc.

TENTATIVE RULING:

The demurrer of defendants Meridian Group Real Estate Management, Inc., and Hoppy Toad Land Company, LLC's, is sustained in part, as to the fourth, seventh, twelfth, thirteenth, and fourteenth causes of action only, with leave to amend. Except as herein sustained, the demurrer is otherwise overruled.

The motion of defendants Meridian Group Real Estate Management, Inc., and Hoppy Toad Land Company, LLC's, to strike portions of plaintiff's complaint is denied.

Plaintiff shall file and serve any first amended complaint on or before October 12, 2026.

Background:

On February 11, 2026, plaintiff Maria Rodriguez (Plaintiff) filed a complaint against defendants Hoppy Toad Land Company, LLC, (Hoppy Toad), Robert V. Kooyman (Kooyman), and Meridian Group Real Estate Management, Inc., (Meridian) (collectively, Defendants), asserting fourteen causes of action: (1) failure to pay all wages due; (2) violation of Labor Code sections 202 and 203; (3) failure to furnish accurate wage statements; (4) breach of contract (against Meridian and Hoppy Toad only); (5) unlawful, unfair, and fraudulent business practices; (6) common count (against Meridian and Hoppy Toad only); (7) termination of tenancy without just cause (Santa Barbara Mun. Code, ch. 26.50 & Civ. Code, § 1946.2) (8) landlord retaliation (Santa Barbara Mun. Code, ch. 26.60 & Civ. Code, § 1946.5); (9) rent stabilization (Santa Barbara Mun. Code, ch. 26.50 & Civ. Code, § 1947.12); (10) retaliation in violation of Labor Code section 1102.5; (11) negligence; (12) intentional infliction of emotional distress; (13) constructive eviction (against Meridian and Hoppy Toad only); and (14) breach of covenant of quiet enjoyment (against Meridian and Hoppy Toad only).

The allegations of the complaint are set forth in 108 paragraphs which, at times, present an interconnected set of facts that lack chronological order or continuity and, at times, are confusing. The manner in which the factual allegations are presented also makes it difficult to ascertain the relevant timeline and events giving rise to the causes of action asserted in the complaint.

In the complaint, Plaintiff alleges that Hoppy Toad is the owner of an apartment complex (the Complex) located at 2102 Bath Street in Santa Barbara, California. (Complaint, ¶ 1.) Kooyman is the Manager of Hoppy Toad and the Chief Executive Officer of Meridian, which is a property management company. (Complaint, ¶¶ 3, 5.) On July 8, 2006, Plaintiff became a tenant of unit #6 (the Unit) at the Complex. (Complaint, ¶ 10.) On November 22, 2013, Plaintiff and Defendants entered into an employment agreement whereby Plaintiff became employed as a resident manager of the Complex. (Complaint, ¶ 60.) Plaintiff was employed by Defendants as the resident manager of the Complex until February 24, 2025. (Complaint, ¶¶ 9, 21.)

Plaintiff further alleges that, initially, Defendants utilized a 2013 "Standard Resident Manager Employment Agreement" which cited rent credits while simultaneously imposing "on-call" restrictions. (Complaint, ¶ 17(a).) On December 4, 2024, Defendants' HR Coordinator, Carol Ramirez, transmitted, by email, a "New Employment Agreement" and a document titled "Key Holder Employment Agreement" which contained a retroactive start date of January 1, 2024. (Complaint, ¶ 17(b).) The

December 4, 2024, email revealed Defendants' true valuation of the Unit at \$2,500, creating a disparity with the "offered" rent of \$1,400. (Complaint, ¶ 17(c).) Plaintiff paid the \$1,400 demand on December 6, 2024. (Complaint, ¶ 19.)

The complaint alleges that Defendants breached the parties' employment agreement by misclassifying Plaintiff as an independent contractor, and by paying her outside of payroll partially in cash or through rent credits which deprived Plaintiff of wage statements and other labor law protections. (Complaint, ¶¶ 24, 63.) Defendants also failed to keep track of the actual hours worked by Plaintiff; charged Plaintiff market or near-market rent in excess of permitted amounts while simultaneously claiming a rent credit to satisfy minimum wage obligations, causing Plaintiff to be paid less than \$1,000 of the wages due to her between November 2013 and June 2015; required Plaintiff to agree in writing to terms and conditions known by Defendants to be prohibited by law; deprived Plaintiff of overtime pay, minimum wages, and meal and rest periods; failed to pay Plaintiff's earned and unpaid wages within statutory time frames; failed to pay Plaintiff all earned wages for all hours worked; and failed to pay all wages due upon Plaintiff's separation. (Complaint, ¶¶ 28-30, 33, 34, 36-38.)

Plaintiff alleges that from 2013 through June 2014, Plaintiff was paid the equivalent of \$2.59 per hour as a rent credit in lieu of wages. (Complaint, ¶ 41.) Since then, Plaintiff's wage credit has been eclipsed by an ever-increasing over-legal rate "reduced rent". (Ibid.) Plaintiff was "illegally" charged \$348.11 per month offset by her wages of \$400, and her effective total compensation between November 2013 and May 2015 was \$882.13. (Ibid. & ¶ 42.) Plaintiff never earned another cent working for Meridian, but the rent kept going up. (Complaint, ¶ 42.)

In addition, from July 2014 through the end of her employment, instead of receiving a rent credit in lieu of wages, Plaintiff was charged additional sums in excess of the rent charge. (Complaint, ¶ 43.) Ledgers produced by Plaintiff showing the rent charges, rent credits, other charges, and payment credits related to the tenancy reveal a systematic pattern of rent overcharges and wage theft totaling \$156,763.18 in overcharges and past due wages. (Complaint, ¶ 13.)

Defendants allegedly terminated Plaintiff's employment in a letter dated February 24, 2025, which claimed that Plaintiff had "abandoned" her position on February 3, 2025, based on a third-party identified as "Enrique" dropping off Plaintiff's keys. (Complaint, ¶¶ 11, 39.) In reality, Plaintiff was on a scheduled vacation from January 28 through February 16, 2025. (Complaint, ¶ 12.) Defendants used the unauthorized actions of the third party as a pretext to fabricate a "voluntary resignation", and ignored Plaintiff's counsel's letter dated February 4, 2025, which explicitly stated that Plaintiff was not resigning her tenancy. (Ibid.)

The complaint further alleges that Defendants offered, and Plaintiff accepted, a new lease agreement effective February 28, 2025, at a market rate of \$2,500 for a one year period starting March 1, 2025. (Complaint, ¶ 76.) On March 15, 2025, Defendants refused to honor that new lease agreement. (Complaint, ¶ 77.) On March 19, 2025, Defendants issued a check in the amount of \$4,606.61 labeled "Security Deposit Refund" and "Tenant Refund for Overpayment". (Complaint, ¶ 86.)

After Plaintiff surrendered possession of the Unit under duress, Defendants issued a "Demand for Payment" on August 15, 2025, demanding the amount of \$10,719.94 which included rent charges for August 2025 when Plaintiff no longer occupied the unit. (Complaint, ¶¶ 78, 86.) As a result of Defendants' conduct, Plaintiff suffered, among other things, the loss of a rent-controlled unit valued at a differential of \$1,500 per month as of August 1, 2025, when the unit was listed for 2,700 per month and lawful rent was \$1,200 per month. (Complaint, ¶¶ 79, 87.)

On May 8, 2026, Hoppy Toad and Meridian (collectively, HT&M) filed a demurrer to the fourth, seventh, eighth, ninth, twelfth, thirteenth, and fourteenth causes of action asserted in the complaint (the demurrer), and separately filed a motion to strike portions of the complaint (the motion to strike).

On June 5, Kooyman filed an answer to the complaint, generally denying its allegations and asserting forty-six affirmative defenses.

On August 14, Plaintiff filed an opposition to the demurrer and separately filed an opposition to the motion to strike. Later on August 14, Plaintiff filed a document labeled as an "intended" opposition to the demurrer, and separately filed a document

labeled as an “intended” opposition to the motion to strike.

Analysis:

As a preliminary matter, the court understands the oppositions to the demurrer and motion to strike separately filed by Plaintiff later on August 14 and labeled as “intended”, to supersede the earlier filed oppositions. As the intended oppositions appear to the operative papers Plaintiff intended to file in response to the demurrer and motion to strike, the court does not consider the original oppositions of Plaintiff filed earlier on August 14.

(1) Demurrer

“In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long-settled rules. ‘We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.’ [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

(a) Demurrer to the fourth cause of action

The later filed opposition that Plaintiff ostensibly intended to file and described above asserts a “limited non-opposition” to the demurrer to the fourth cause of action for breach of contract “solely on formal procedural grounds to attach operative contract instruments”, and requests “twenty ... days leave” to file a first amended complaint. (Opp. at p. 2, ll. 6-9.) In support of that limited non-opposition, Plaintiff’s counsel, H. Frederick Seigenfeld (attorney Seigenfeld) states that, during a meet and confer teleconference, they informed counsel for HT&M that Plaintiff “was amenable to amending” the fourth cause of action “to clarify whether the contract was oral, written, or implied and to specify its terms.” (Seigenfeld Dec., ¶ 2.) Attorney Seigenfeld further states that their April 22, 2026, letter confirmed Plaintiff’s verbal agreement to amend the complaint “to perfect the breach of contract cause of action” (Ibid.)

The court construes the statements of attorney Seigenfeld described above as a concession by Plaintiff that the demurrer to the fourth cause of action for breach of contract has merit. In reply, HT&M state that they defer to the court as to the request for leave to amend, and request that the court require any amended pleading to identify and attach the operative contract and allege its material terms. (Reply at p. 9.)

For all reasons discussed above, as the pleading at issue is Plaintiff’s original complaint, the court will sustain the demurrer to the fourth cause of action with leave to amend. (Eghtesad v. State Farm General Ins. Co. (2020) 51 Cal.App.5th 406, 411–412.) To the extent HT&M contend that any first amended complaint that may be filed by Plaintiff fails to allege facts sufficient to constitute a cause of action for breach of contract, HT&M may “test its legal sufficiency in other appropriate proceedings.” (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760 & fn. 21.)

(b) Demurrer to the seventh, eighth, and ninth causes of action

The grounds for demurrer to the seventh, eighth, and ninth causes of action are presented together without differentiating between those causes of action. Those grounds include that the complaint shows that Plaintiff was an employee of HT&M pursuant to a written employment agreement; that Plaintiff’s employment was subject to the protections of the Labor Code and various wage orders; that Plaintiff occupied the Unit as part of Plaintiff’s employment compensation; that Plaintiff’s employment was validly terminated; that the termination of Plaintiff’s employment required Plaintiff to vacate the Unit; and that Plaintiff’s continued occupancy of the Unit after that termination does not qualify as a tenancy. For these reasons, the demurrer argues, there exists just cause for the termination of Plaintiff’s tenancy, such that the complaint fails to state causes

of action arising from the termination of Plaintiff's tenancy without just cause, and for landlord retaliation and rent stabilization under the Santa Barbara Municipal Code and the Tenant Protection Act of 2019.

The intended opposition of Plaintiff asserts that the complaint shows Plaintiff's tenancy did not originate as an employment license and instead, that Plaintiff's right to possess the Unit originated under an independent residential hiring seven years prior to Plaintiff's employment with HT&M; that any employment agreement executed seven years later could not retroactively impair or waive any of Plaintiff's statutory tenancy rights or convert Plaintiff's pre-existing tenancy into an exempt employment license; and that the new lease agreement that became effective on February 28, 2025, created an independent residential tenancy and defeats any claims by HT&M of a tenancy at sufferance. For these reasons, the opposition argues, the employee, licensee, or just cause exceptions to the Tenant Protection Act of 2019 or the Santa Barbara Municipal Code do not apply under the circumstances alleged in the complaint.

In their respective moving and opposing papers, the parties rely on published opinions of superior court appellate divisions including *Chan v. Antepencko* (1988) 203 Cal.App.3d Supp. 21, overruled in part by *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1041 (Spinks); *Karz v. Mecham* (1981) 120 Cal.App.3d Supp. 1; *De Paolo v. Rosales* (2025) 118 Cal.App.5th Supp. 1; and *Tappe v. Lieberman* (1983) 145 Cal.App.3d Supp. 19. (Demurrer at pp. 9-10; Opp. at pp. 12-13.) "[A]n opinion published by the Superior Court Appellate Department, is not, of course, binding precedent, but 'the persuasive value of such opinions has been constantly recognized.' [Citation.]" (*People v. Moore* (1994) 31 Cal.App.4th 489, 492, fn. 2.) "Additionally, although decisions of the appellate department have persuasive value, they are 'of debatable strength as precedents[]' [Citation.]" (*Suarez v. Plastic Dress-Up Co.* (1982) 31 Cal.3d 774, 782, fn. 9.)

"The distinguishing characteristics of a leasehold estate are that the lease gives the lessee the exclusive possession of the premises against all the world, including the owner" (*Howard v. County of Amador* (1990) 220 Cal.App.3d 962, 972.) If the agreement between the parties does not grant exclusive possession of the premises, the interest created by the agreement is not a leasehold estate or tenancy. (*San Jose Parking, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1321, 1328 [no exclusive possession where contracting party was required to provide access for customers of adjacent owners].) Further, " '[a]ll landlord-tenant relationships share in common the basic conveyance and contract elements. But each type of tenancy is distinguishable by certain unique characteristics.' [Citation.]" (*Spinks*, supra, 171 Cal.App.4th at p. 1032.)

The complaint is sufficient to show, expressly and by inference, that on July 8, 2006, HT&M conveyed to Plaintiff a possessory interest in the Unit to Plaintiff, and that Plaintiff became a tenant of the Unit on that date and occupied the Unit with the consent of HT&M. (*Borden v. Stiles* (2023) 92 Cal.App.5th 337, 347-348 (Borden) [discussing tenancies at will]; *Miller v. Elite Ins. Co.* (1980) 100 Cal.App.3d 739, 750 ["a tenancy ... may be created by occupancy by consent"]; *Vallye Investments, L.P. v. BancAmerica Commercial Corp.* (2001) 88 Cal.App.4th 816, 823.) For these and all further reasons discussed above, the alleged occupancy of the Unit by Plaintiff with the ostensible consent of HT&M is sufficient to show that landlord-tenant relationship arose between the parties on July 8, 2006. (*Ellingson v. Walsh, O'Connor & Barneson* (1940) 15 Cal.2d 673, 675.)

Notwithstanding whether the complaint shows that Plaintiff became an authorized tenant of the Unit on July 8, 2006, the complaint alleges no facts showing whether the parties entered into a written lease fixing the term of Plaintiff's tenancy, or the nature or type of tenancy that commenced on that date. Absent such allegations, it is not unreasonable to infer from the complaint that Plaintiff's tenancy at the Unit commenced as a tenancy at will "having no fixed term that continues indefinitely until terminated." (*Silveira v. County of Alameda* (2006) 139 Cal.App.4th 989, 997; see also Civ. Code, § 1945; *Peter Kiewit Sons' Co. v. Richmond Redevelopment Agency* (1986) 178 Cal.App.3d 435, 445.)

Noted above, the complaint alleges that on November 22, 2013, Plaintiff became employed by HT&M as the resident manager of the Complex pursuant to the written employment agreement. It can be inferred from these allegations that, pursuant to that agreement, Plaintiff would remain in possession of the Unit, and that Plaintiff's compensation for serving as the resident manager would include a rent credit. (Complaint, ¶¶ 10, 13, 17(b), 24, & 60 [suggesting that Plaintiff's tenancy was a "prerequisite" of employment].) For these reasons, the allegations of the complaint also give rise to a reasonable inference that the subject written employment agreement did not "renew[] the hiring on the same terms and for the same time", and that Plaintiff and HT&M intended that agreement "to serve as the exclusive embodiment of their agreement" with respect to Plaintiff's tenancy at the Unit as of November 22, 2013. (Civ. Code, § 1945; *Masterson v. Sine* (1968) 68 Cal.2d 222, 225.)

The seventh cause of action ostensibly arises from an alleged termination of Plaintiff's tenancy by HT&M without just cause, in violation of Chapter 26.50 of the Santa Barbara Municipal Code and Civil Code section 1946.2.

" 'California's first comprehensive antirent g[lo]bing and eviction control law, the Tenant Protection Act of 2019 [citation]' added sections 1946.2, 1947.12, and 1947.13 to the Civil Code, effective January 1, 2020. [Citations.]" (Borden, supra, 92 Cal.App.5th at p. 346.) Under the Tenant Protection Act of 2019 or the "Act", "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause" (Civ. Code, § 1946.2, subd. (a).) The Act defines "just cause" to include "[a]t-fault" and "[n]o-fault" just cause as those terms are defined in Civil Code section 1946.2. (See Civ. Code, § 1946.2, subd. (b)(1) & (2).)

Relevant here, at-fault just cause means "[t]he employee, agent, or licensee's failure to vacate after their termination as an employee, agent, or a licensee as described in paragraph (1) of Section 1161 of the Code of Civil Procedure." (Civ. Code, § 1946.2, subd. (b)(1)(J).) The remedy of unlawful detainer under Code of Civil Procedure section 1161 " 'is available ... to an owner against an employee, agent, or licensee whose relationship has terminated' [Citations.]" (Greene v. Municipal Court (1975) 51 Cal.App.3d 446, 450; accord, Borden, supra, 92 Cal.App.5th at p. 344; see also Code Civ. Proc., § 1161, subd. (1) [unlawful detainer "includ[es] the case where the person to be removed became the occupant of the premises as a[n] ... employee"].)

Absent allegations showing why Plaintiff's continued occupancy of the Unit after November 22, 2013, was not incidental to the written employment agreement alleged in the complaint, and considering the allegation that Plaintiff became an employee of HT&M for purposes of the payment of wages and other labor law protections asserted in the complaint, the complaint gives rise to a reasonable inference that the employment agreement transformed the nature of Plaintiff's occupancy of the Unit from a tenancy to an employee relationship, and that Plaintiff's right to continue their occupancy of the Unit was incidental to Plaintiff's employment with HT&M. For these reasons, it can be reasonably inferred from the allegations of the complaint that on November 22, 2013, Plaintiff became an occupant or tenant of the Unit as an employee of HT&M.

The complaint further alleges that Plaintiff's employment with HT&M terminated on February 24, 2025. For these and all further reasons discussed above, to the extent the seventh cause of action is based on a termination of Plaintiff's tenancy arising from the termination of Plaintiff's employment with HT&M, the complaint fails to show why that termination was without just cause for purposes of the Act.

The same reasoning and analysis apply in regard to the cause of action for violation of the Santa Barbara Municipal Code. (Santa Barbara Mun. Code, § 26.50.070, subd. (1)(j) ["[a]t-fault just cause" is "[t]he employee[s] ... failure to vacate after their termination as an employee, agent, or a licensee as described in paragraph (1) of Section 1161 of the Code of Civil Procedure"].)

To the extent the seventh cause of action arises from a failure by HT&M to honor the new lease agreement that allegedly became effective on February 28, 2025 (see complaint, ¶¶ 76-77), the complaint shows that as of March 15, 2025, which is the date HT&M allegedly refused to honor that new lease (see complaint, ¶ 77), Plaintiff had not "continuously and lawfully occupied" the Unit for "12 months". (Civ. Code, § 1946.2, subd. (a); see also Santa Barbara Mun. Code, § 26.50.010 [defining "Qualified Tenant" for purposes of just cause provisions].) For these additional reasons, the complaint fails to show why the just cause provisions of the Act or the Santa Barbara Municipal Code apply as to any new lease agreement that became effective on February 28, 2025.

For all reasons discussed above, the court will sustain the demurrer to the seventh cause of action on the grounds stated, with leave to amend.

The ostensible grounds for demurrer to the eighth and ninth cause of action for landlord retaliation and rent stabilization include that Plaintiff's occupancy of the Unit while employed as the resident manager of the Complex does not qualify as a tenancy for purposes of the Act or the Santa Barbara Municipal Code, including as of the date Plaintiff's employment was terminated.

Noted above, the eighth cause of action alleges retaliatory conduct in violation of Civil Code section 1942.5, which provides: "If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days of any of the" events listed in subdivision (a)(1) through (5) of that section. (Civ. Code, § 1942.5, subd. (a).)

The demurrer presents no reasoned factual or legal argument showing why HT&M was not a "lessor" of the Unit during the time Plaintiff occupied the Unit during her employment with HT&M. (See Civ. Code, § 1940, subd. (b); Code Civ. Proc., § 1161, subd. (1) ["tenant" includes persons who "became the occupant ... as a[n] employee"]; 640 Octavia, LLC v. Pieper (2023) 93 Cal.App.5th 1181, 1195 [rent may include services].) To the extent the complaint alleges facts sufficient to show that Plaintiff was a tenant of the Unit notwithstanding whether that tenancy was incidental to Plaintiff's employment with HT&M, the demurrer fails to explain why, under those circumstances, Plaintiff is precluded from asserting a cause of action for retaliatory eviction under Civil Code section 1942.5. (S.P. Growers Assn. v. Rodriguez (1976) 17 Cal.3d 719, 723–724 [retaliation claim by farm worker tenants].)

A reasonable interpretation of the complaint also shows that the eighth cause of action arises from conduct that purportedly occurred before the termination of Plaintiff's employment. (See, e.g., Complaint, ¶¶ 83-84 [alleging demands of "illegal rent" and threats of "displacement"].) To the extent the demurrer addresses only those allegations which arise after Plaintiff's employment was terminated, "a demurrer cannot rightfully be sustained to part of a cause of action" (Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1047.)

The same or similar reasoning and analysis apply in regard to the ninth cause of action for rent stabilization asserted in the complaint. For example, the demurrer presents no reasoned argument showing why the Unit does not constitute "residential real property" or is otherwise exempt from the rent increase limitations set forth in Civil Code section 1947.12. For these and all further reasons discussed above, the court will overrule the demurrer to the eighth and ninth causes of action on the grounds stated.

(c) Demurrer to the twelfth, thirteenth, and fourteenth causes of action

The grounds for demurrer to the twelfth, thirteenth, and fourteenth causes of action are presented in a similar manner, without differentiating between those causes of action. Those grounds include that Plaintiff was an employee and not a tenant; that the complaint fails to allege conduct which exceeds all bounds of decency, created intolerable conditions that rendered the premises unfit for occupancy, or interfered with Plaintiff's right to use and enjoy the premises; that intentional misconduct which occurs during an employment relationship and results in emotional injury is barred by workers' compensation; and that Plaintiff did not voluntarily surrender possession of the premises but was evicted in an unlawful detainer action.

As to the twelfth cause of action, "[a] cause of action for intentional infliction of emotional distress exists when there is '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.'" [Citations.] A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' [Citation.] And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.' [Citation.]" (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051, internal quotation marks omitted.)

The complaint, given a reasonable interpretation, ties the following allegations to the element of extreme and outrageous conduct by HT&M: "systematic wage theft; misclassifying Plaintiff to avoid legal obligations; terminating a then over twenty ... yearlong protected tenancy, wrongfully endeavoring to recover possession of Plaintiff's rental unit through imposition of unlawful rent, refusal to acknowledge existing month-to-month tenancy and repudiation of the new lease agreement, despite having already accepted rent for a new one-year lease term starting March 1, 2025." (Complaint, ¶ 103.) For present purposes, the court accepts the truth of those allegations.

The allegations described above do not show, expressly or by inference, that HT&M's conduct was extreme or outrageous. For example, Plaintiff does not allege that HT&M failed to keep the Unit in a habitable condition, that the Unit was "untenable" for purposes of Civil Code sections 1941 or 1941.1, or that the Unit violated any provisions of the Health and Safety Code. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 922 [discussing acts of landlord sufficient to show extreme and outrageous conduct]; *Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1298-1299 (*Erlach*) [same].)

In addition, wholly absent from the complaint are any allegations showing that HT&M knew Plaintiff was "peculiarly susceptible to emotional distress, by reason of some physical or mental condition or peculiarity" and proceeded to direct their conduct at Plaintiff in the face of such knowledge. (*McDaniel v. Gile* (1991) 230 Cal.App.3d 363, 372.) The allegations of the complaint are also insufficient to show any intentional act by HT&M undertaken for the purpose of causing distress to Plaintiff. (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1273; *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, 165, fn. 5 [conduct must be of a nature which is calculated to and actually does cause serious mental distress].)

Though the examples provided above are intended to be illustrative but not exhaustive, the allegations described above show purported conduct by HT&M that was, at most, imprudent or uninformed. "[C]onduct uninformed by sound judgment is not necessarily synonymous with extreme and outrageous conduct." (*KOVR-TV, Inc. v. Superior Court* (1995) 31 Cal.App.4th 1023, 1030.)

For all reasons discussed above, the complaint fails to allege facts sufficient to show extreme or outrageous conduct by HT&M that exceeds or is beyond all bounds of decency or that was calculated to cause severe emotional distress to Plaintiff. Therefore, and for these reasons, the court will sustain the demurrer to the twelfth cause of action with leave to amend.

The thirteenth and fourteenth causes of action assert claims for, respectively, constructive eviction and breach of the covenant of quiet enjoyment. "An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring, against all persons lawfully claiming the same." (Civ. Code, § 1927.) "[E]very lease includes a covenant of quiet possession and enjoyment. [Citation.] This covenant is breached upon actual or constructive eviction of the tenant. [Citation.] Any interference by the landlord that deprives the tenant of the beneficial enjoyment of the premises or renders the premises unfit for the purposes for which they are let amounts to a constructive eviction if the tenant so elects and vacates within a reasonable time. [Citation.]" (*Erlach*, supra, 226 Cal.App.4th at pp. 1299–1300.)

In the complaint, Plaintiff alleges that the following acts or omissions of HT&M interfered with Plaintiff's rights to use and enjoy the Unit: "the imposition of unlawful rent"; the "refusal to acknowledge existing month-to-month tenancy"; the "repudiation of the new lease agreement"; and the "weaponization of rent increases". (Complaint, ¶¶ 106 & 108.)

"To be actionable, the landlords act or omission must substantially interfere with a tenants right to use and enjoy the premises for the purposes contemplated by the tenancy." (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 589.) The complaint fails to show why the acts or omissions by HT&M described above substantially or unnecessarily interfered with Plaintiff's right to use or enjoy the Unit, denied Plaintiff any essential use of the Unit, or disturbed Plaintiff's possession of the Unit. (See also *Erlach*, supra, 226 Cal.App.4th at p. 1300 [general discussion].)

The complaint also alleges that, though Plaintiff "did not wish to move", Plaintiff was compelled to vacate the premises and "constructively evicted" on July 30, 2025. (Complaint, ¶¶ 10 & 106.) These general and conclusory allegations are insufficient to show why the covenant of quiet possession was breached upon the purported constructive eviction of Plaintiff on that date. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 293 [general discussion].)

The court further notes that "[c]onduct amounting to a breach of contract becomes tortious only when it also violates an independent duty arising from principles of tort law. 'The law imposes the obligation that "every person is bound without contract to abstain from injuring the person or property of another, or infringing upon any of his rights." [Citation.] This duty is independent of the contract.... "[A]n omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty." ' [Citation.]" (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 515.) The allegations of the complaint described above raise a question of whether the acts and omissions underlying the thirteenth

and fourteenth causes of action constitute a failure to perform under any express or implied covenants in the employment agreement and not a breach of any duty independent of that contract. (See *Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 903–904 [general discussion].)

For all reasons discussed above, the general and conclusory allegations of the complaint are insufficient to show conduct by HT&M that falls within the scope of the covenant of quiet enjoyment or amounts to an actual or constructive eviction of Plaintiff. Therefore, and for these reasons, the court will, at this stage of the proceedings, sustain the demurrer to the thirteenth and fourteenth causes of action with leave to amend.

(2) Motion to Strike

Subject to exception not present here, “within the time allowed to respond to a pleading”, any party “may serve and file a notice of motion to strike the whole or any part thereof[.]” (Code Civ. Proc., § 435, subd. (b)(1).) “The court may, upon a motion made pursuant to [Code of Civil Procedure] [s]ection 435, or at any time in its discretion, and upon terms it deems proper:

“(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

“(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (a), (b).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

The grounds for the motion to strike include that the complaint fails to allege any specific facts showing a basis for the imposition of punitive damages; asserts blanket or conclusory allegations as to malice based on conduct of unidentified defendants without pointing to which specific conduct by each defendant supports such claims; and repeatedly concludes that defendants acted with the requisite intent for punitive damages without pointing to the specific allegations supporting such conclusions. As to the corporate entity defendants, the motion to strike asserts that the complaint fails to allege facts showing that those entities authorized or ratified any alleged conduct.

Relevant here, Civil Code section 3294, subdivision (b), provides: “An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

The complaint alleges that Meridian is “a purported corporation”. (Complaint, ¶ 3.) Though the complaint alleges that Hoppy Toad is a “business entity, form unknown” (complaint, ¶ 4), members of a limited liability company or “LLC” “may generally participate in the management and control of the business” depending “on how management is vested within the parties’ operating agreement and articles of incorporation.” (*Swart Enterprises, Inc. v. Franchise Tax Bd.* (2017) 7 Cal.App.5th 497, 510.) Noted above, the complaint alleges that Kooyman is an officer of Meridian and the “manager” of Hoppy Toad. (Complaint, ¶¶ 5.)

The complaint, given a reasonable interpretation, shows that the conduct by Kooyman at issue is the exercise by Kooyman of final authority over the terms of Plaintiff’s tenancy and employment by directing or authorizing the purported failure to pay Plaintiff all wages due to Plaintiff; by misclassifying Plaintiff as an independent contractor; by failing to keep track of the actual hours worked by Plaintiff; by charging of rent or applying rent credits in violation of Labor Code provisions and various orders of the Industrial Welfare Commission; by failing to furnish Plaintiff with accurate itemized wage statements; by failing to provide meal and rest periods; and by requiring Plaintiff to agree in writing to terms and conditions known by Kooyman to be

prohibited by law. (Complaint, ¶¶ 5, 7, 24, 28, 29, 39, 40, 49, 54, & 66.)

Even if the allegations of the complaint are sufficient to show that Kooyman is an officer or managing agent of HT&M who authorized or ratified the conduct described above, those allegations do not describe “conduct which is intended by [Kooyman] to cause injury to [P]laintiff”, “despicable conduct which is carried on by [Kooyman] with a willful and conscious disregard of the rights or safety of others”, “despicable conduct that subject[ed] [Plaintiff] to cruel and unjust hardship in conscious disregard of [Plaintiff’s] rights”, or “an intentional misrepresentation, deceit, or concealment of a material fact known to [Kooyman] with the intention on the part of [Kooyman] of thereby depriving [Plaintiff] of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(1)-(3) [defining “Malice”, “Oppression”, and “Fraud” as used in that section].)

In addition, to the extent the allegations described above show that HT&M breached an obligation arising from the purported written employment agreement between the parties, “punitive damages are ordinarily not recoverable, even where the defendant has violated his or her obligations maliciously or in bad faith.” (Brewer v. Premier Golf Properties, LP (2008) 168 Cal.App.4th 1243, 1252.) Furthermore, “punitive damages are not recoverable when liability is premised solely on the employer’s violation of the Labor Code statutes that regulate meal and rest breaks, pay stubs, and minimum wage laws.” (Ibid.)

Notwithstanding whether the complaint alleges facts sufficient to show malice, oppression, or fraud, the complaint also asserts a tenth cause of action for violation of Labor Code section 1102.5 by HT&M. (Complaint, ¶¶ 98-99.) “[P]unitive damages are available for a violation of Labor Code section 1102.5” (Mathews v. Happy Valley Conference Center, Inc. (2019) 43 Cal.App.5th 236, 268.) As the demurrer is not directed to the tenth cause of action, HT&M have not presented any reasoned factual or legal argument showing why the complaint fails to facts constituting a cause of action for violation of Labor Code section 1102.5.

Further, “[a] motion to strike must be directed with precision to the matter sought to be stricken.” (Dietlin v. General American Life Ins. Co. (1935) 4 Cal.2d 336, 346.) Though the notice identifies the particular allegations which HT&M move to strike, the supporting memorandum does not identify which, if any, of those allegations pertain to the claim for punitive damages at issue or why. To the extent allegations listed in the notice are essential the tenth cause of action further discussed above or claims or matters alleged with respect to other defendants, they “should not be struck” (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281 (Quiroz).) For these and all further reasons discussed above, the court will deny the motion to strike allegations of or relating to punitive damages appearing in the complaint.

The motion to strike further asserts that paragraphs 17 and 18 should be stricken because the complaint fails to allege facts sufficient to show any specific misrepresentations or concealment by HT&M.

Even if HT&M could present reasoned factual or legal argument showing why the complaint is barred by any statute of limitations or fails to plead facts sufficient to show fraud or the tolling of any statute of limitations by fraud (and the court presently makes no findings as to this issue), “[t]his is ground not for a motion to strike, but for a general demurrer.” (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 529 (Ferraro).) The allegations set forth in paragraphs 17 and 18 also appear “essential to [the] cause[s] of action” alleged in the complaint. (Quiroz, *supra*, 140 Cal.App.4th at p. 1281.)

The motion to strike also fails to explain why paragraphs 17 and 18 are not “drawn or filed in conformity with the laws of this state, a court rule, or an order of the court”, or why there exist “improprieties in [their] form or in the procedures pursuant to which [the complaint] was filed.” (Ferraro, *supra*, 161 Cal.App.4th at p. 528, original italics; see also Code Civ. Proc., § 431.10, subd. (b)(1)-(3) & (c) [describing “irrelevant” matter for purposes of a motion to strike].) For these and all further reasons discussed above, the motion to strike paragraphs 17 and 18 of the complaint does not properly fall within the provisions of Code of Civil Procedure section 436. Therefore, the court will deny the motion to strike as to those paragraphs.

(3) Requests for judicial notice

In support of the demurrer and motion to strike, HT&M request judicial notice of a minute order (the Minute Order) entered on June 11, 2025, in Santa Barbara County Superior Court case number 25CV02820 entitled Meridian Group Real Estate Management Inc. vs Maria Rodriguez. (HT&M RJN, ¶ 1 & exhibit A.) Though Plaintiff contends that the Minute Order, and the settlement reflected in that order, does not bar the thirteenth or fourteenth causes of action asserted in the complaint, Plaintiff does not oppose and joins in that request. (Pl. Intended RJN, ¶ 2.)

The Minute Order, and the matters reflected in that order, present matters extrinsic to the complaint which are not necessary or relevant to the court's determination of the issues raised in the demurrer and motion to strike. For these reasons, the court will deny the request for judicial notice of the Minute Order. (*Mangini v. R. J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063, overruled on other grounds by *In re Tobacco Cases II* (2007) 41 Cal.4th 1257, 1276.)

In support of the intended oppositions to the demurrer and motion to strike, Plaintiff also requests judicial notice of Chapters 26.40, 26.50, and 26.60 of the Santa Barbara Municipal Code, and of regulations of the City of Los Angeles. (Pl. Intended RJN, ¶¶ 1, 3.) The court will grant Plaintiff's request for judicial notice of those chapters of the Santa Barbara Municipal Code. (Evid. Code, § 452, subd. (b).) The court will deny the request for judicial notice of regulations of the City of Los Angeles for the same reasons discussed above.

Judges

Judge Colleen Sterne

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